

1 ENGROSSED HOUSE
2 BILL NO. 4038

By: Caldwell (Trey) and Kane of
the House

3 and

4 Hall and Haste of the
5 Senate

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8 An Act relating to transportation; requiring that
9 portions of funds be used for certain purposes;
10 providing budgeting and expenditure limitations and
11 procedures; providing for lapse of funds under
12 certain conditions; making an appropriation;
13 determining purpose of funds appropriated; providing
14 for noncodification; providing an effective date; and
15 declaring an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

19 Of the funds appropriated to the Department of Transportation in
20 Section 67 of Enrolled Senate Bill No. 1177 of the 2nd Session of
21 the 60th Oklahoma Legislature, the sum of Five Million Dollars
22 (\$5,000,000.00) shall, under the direction of the Executive
23 Director, be dedicated to funding projects on the 8-Year
24 Construction Work Plan.

SECTION 2. Appropriations made by this act, not including
appropriations made for capital outlay purposes, may be budgeted for

1 the fiscal year ending June 30, 2027 (hereafter FY-27), or may be
2 budgeted for the fiscal year ending June 30, 2028 (hereafter FY-28).
3 Funds budgeted for FY-27 may be encumbered only through June 30,
4 2027, and must be expended by November 15, 2027. Any funds
5 remaining after November 15, 2027, and not budgeted for FY-28, shall
6 lapse to the credit of the proper fund for the then current fiscal
7 year. Funds budgeted for FY-28 may be encumbered only through June
8 30, 2028. Any funds remaining after November 15, 2028, shall lapse
9 to the credit of the proper fund for the then current fiscal year.
10 These appropriations may not be budgeted in both fiscal years
11 simultaneously. Funds budgeted in FY-27, and not required to pay
12 obligations for that fiscal year, may be budgeted for FY-28, after
13 the agency to which the funds have been appropriated has prepared
14 and submitted a budget work program revision removing these funds
15 from the FY-27 budget work program and after such revision has been
16 approved by the Office of Management and Enterprise Services.

17 SECTION 3. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

19 There is hereby appropriated to the Department of Transportation
20 from any monies not otherwise appropriated from the General Revenue
21 Fund of the State Treasury for the fiscal year ending June 30, 2027,
22 the sum of Two Hundred Sixty-six Thousand Dollars (\$266,000.00) or
23 so much thereof as may be necessary to perform the duties imposed
24 upon the Department of Transportation by law.

SECTION 4. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

Funds appropriated by Section 3 of this act shall be utilized as
follows:

Two Hundred Sixty-six Thousand Dollars (\$266,000.00) to
implement the provisions of Enrolled House Bill No. 2979 of the 2nd
Session of the 60th Oklahoma Legislature.

SECTION 5. This act shall become effective July 1, 2026.

SECTION 6. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

Passed the House of Representatives the 14th day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate